

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN NEW CALEDONIA

INTRODUCTION & FRAMEWORK

Concern for the environment in New Caledonia turns on a stark tension at the heart of this Pacific territory: it holds one of the world's greatest deposits of nickel, the backbone of its economy, and at the same time one of the world's most extraordinary and threatened concentrations of life, where three-quarters of the plants grow nowhere else on earth and a great barrier reef and lagoon are recognised as a treasure of all humanity. New Caledonia is a French Pacific territory in Melanesia, its main island of Grande Terre ringed by an eleven-hundred-kilometre barrier reef enclosing one of the largest and most biodiverse coral-reef ecosystems on earth, its land a globally significant biodiversity hotspot of astonishing endemism, its people including the indigenous **Kanak** who live along the coasts by farming, hunting, and fishing and who have themselves fought to protect this environment. The open-cast mining that sustains the economy strips the red earth, erodes the mountainsides, and sends metal-laden sediment down into the world-heritage lagoon. There is no single, final victory to point to. But, distinctively, this is a place where real legal, regulatory, and indigenous-rights tools exist to press that mining toward restraint, in a territory with working courts and codes.

A community in New Caledonia facing harmful mining works with genuinely strong tools, in a territory that pairs a powerful extractive economy with real legal, regulatory, indigenous, and world-heritage tools. The distinctive lever is the **world-heritage lagoon and barrier reef**, defensible through the international and marine frameworks that recognise it as a treasure of all humanity — and the sediment the mining sends into it is a concrete, documented harm to a protected place. The **open-cast nickel mining** can be pressed toward restraint through the **territory's and provinces' real environmental regulation and codes** and the environmental assessment — working legal gates. The **extraordinary endemic life** — three-quarters of the plants found nowhere else — commands the **world's conservation frameworks**; protest, petition, and litigation are lawful. The **indigenous Kanak land and environmental rights** are deep and carry a proven record of winning protection — a distinctive, powerful lever — and the **French and local legal system** offers working courts and codes to enforce it all. But these tools have real limits, and this guide states them plainly. Nickel is the economy's backbone, some ninety percent of its exports, so the mining is entrenched and reform means reckoning with livelihoods — the aim is restraint and better practice, not the ruin of a people's income. The industry is now in crisis, which is both a danger and an opening. The territory is in the midst of an unfinished and sometimes tense decolonisation, which must be handled with care and strict neutrality, keeping the work to the environmental. The regulation, though real, has too often relied on the mining companies themselves. And no single, final victory is to be won. So aim for what these tools can genuinely deliver — the mining pressed toward restraint and better practice, the world-heritage lagoon defended, the endemic forests protected, the Kanak rights upheld — through the regulation, the world-heritage and conservation frameworks, the indigenous rights, and the working courts, keeping strictly to the environmental and neutral on the politics.

The Whole Strategy in One Idea

You win here through the real legal, regulatory, indigenous, and world-heritage tools a well-equipped territory affords. Defend the world-heritage lagoon and reef through the international and marine frameworks; press the nickel mining toward restraint through the territory's and provinces' environmental

regulation and assessment; invoke the world's conservation frameworks for the endemic life; wield the deep Kanak land and environmental rights, with their proven record; and enforce it all through the working courts — keeping strictly to the environmental, neutral on the politics, and aiming at restraint, not the ruin of livelihoods.

Be Honest About Which Fight You're In

New Caledonia is a distinctive, legally-equipped setting, and honesty about the harder truths is the first discipline. Nickel is ninety percent of exports, so the mining is entrenched and reform means reckoning with livelihoods; the industry is in crisis, both a danger and an opening; the territory is in a tense, unfinished decolonisation that demands care and neutrality; and the regulation has too often relied on the companies themselves. So aim at the winnable — the mining pressed toward restraint and better practice, the lagoon defended, the endemic forests protected, the Kanak rights upheld — through the regulation, the world-heritage frameworks, the indigenous rights, and the courts, keeping strictly to the environmental.

HOW THE SYSTEM WORKS

Who Actually Decides

A New Caledonian project runs through a legally-equipped French territory. The **territory's and provinces' governments and their environmental bodies** administer the mining regulation, the codes, and the assessments. The **French and local courts** enforce the law. The **Kanak customary authorities and their land and environmental rights** carry deep, proven weight. The **world-heritage and conservation frameworks** — UNESCO, the international bodies — guard the lagoon and the endemic life. Map who decides a mine's fate, at territory, province, and customary level, before spending a week on it.

How a Project Moves — and Where You Jump In

A mine or expansion runs through the environmental regulation and assessment of the territory and provinces, and — where it touches Kanak land or the world-heritage lagoon — the indigenous rights and international frameworks. That regulation and assessment is your first entry point: the moment to document the harm, the sediment to the lagoon, the endemic life at stake, and press for restraint, conditions, or refusal. Beyond it lie the Kanak rights, the world-heritage and conservation frameworks, and the working courts. Enter early, at the regulation, and neutral on the politics.

Follow the Money and the Permissions

Follow the nickel: which mines and expansions strip the earth and send sediment to the lagoon, under what permits and assessments. Follow the regulation: whether the environmental code and assessment were properly met, or left to the companies. Follow the heritage: whether the harm reaches the world-heritage lagoon or the endemic forests. Follow the land: whether it touches Kanak customary rights. The leverage lies in the regulation, the world-heritage and conservation frameworks, the Kanak rights, and the courts.

Who's Supposed to Be Watching

New Caledonia has real watchers: the territory's and provinces' environmental bodies, the French and local courts, the Kanak customary authorities, the world-heritage and conservation frameworks, and a free press. The honest caution is that the regulation has too often relied on the mining companies themselves — so a case is built to engage the watchers and hold them, and the companies, to independent standards.

QUICK REFERENCE: SUCCESS RATES

Opposition in New Caledonia is genuinely achievable, in a territory with real regulation, world-heritage protection, deep indigenous rights, and working courts. The single most decisive move is **grounding the case in the world-heritage lagoon and the Kanak rights, and pressing it through the environmental regulation and the courts**, because the sediment to a treasure of all humanity is a concrete, documented harm, and because the Kanak have a proven record of winning protection. The world-heritage lagoon is the distinctive lever; the regulation the gate; the Kanak rights the powerful, proven claim; the courts the enforcer. What the tools deliver is real — the mining pressed toward restraint, the lagoon and forests defended, the rights upheld — though nickel is entrenched.

STEP 1: TARGET IDENTIFICATION

Ask five questions. **What is the harm?** — the open-cast mine stripping the earth, the sediment to the lagoon, the endemic forest cleared. **What does it need?** — an environmental permit and assessment under the codes. **What does it touch?** — the world-heritage lagoon, the endemic biodiversity, Kanak land. **Which right or framework reaches it?** — the Kanak rights, the world-heritage and conservation frameworks. **What livelihood is involved?** — the nickel economy, to be pressed toward restraint not ruined. Pick the fight where the world-heritage lagoon, the Kanak rights, or the regulation bites hardest.

STEP 2: DOCUMENTATION

Build the case in layers. **Layer one: the harm** — the stripped earth, the eroded mountainsides, the sediment to the world-heritage lagoon, the endemic life cleared, documented with the science. **Layer two: the rule and the right** — the environmental regulation and assessment, the world-heritage and conservation frameworks, the Kanak land and environmental rights the harm breaches or strains. **Layer three: the coalition and the courts** — the Kanak authorities, the conservation groups, and the working courts to engage. A case grounded in the world-heritage harm, the regulation, and the Kanak rights is one New Caledonia's institutions and courts take seriously.

WHAT TO GATHER, AND WHERE TO FIND IT

Gather the **harm record**: the mine's footprint, the erosion, the sediment to the lagoon, the endemic life at stake, the science. Gather the **rule record**: the environmental regulation, codes, and assessment, and whether they were left to the companies. Gather the **heritage record**: the world-heritage lagoon status, the biodiversity-hotspot frameworks. Gather the **rights record**: the Kanak land and environmental rights and their proven precedents. Gather the **coalition record**: the Kanak authorities, the conservation groups, the courts. New Caledonia's working legal system makes much of this genuinely obtainable.

STEP 3: BUILDING LOCAL OPPOSITION

New Caledonia's strength includes the Kanak, who have a proven record of winning environmental protection. Build a coalition of the **Kanak communities and customary authorities**, whose land and rights are deep and tested; the **affected residents and fishers**, whose lagoon and coast are at stake; the **conservation and scientific groups**, who can speak for the endemic life; and the **legal advocates** who can bring the regulatory and court challenges. Frame the cause around restraint and better practice, not the ruin of the nickel livelihood — and keep the work strictly environmental and neutral on the tense politics of

decolonisation.

STEP 4: THE WORLD-HERITAGE LAGOON, THE REGULATION & THE KANAK RIGHTS — PRESSING THE MINING TOWARD RESTRAINT

Set expectations honestly: here the levers are real and strong, in a legally-equipped territory, though nickel is entrenched and the politics tense.

The World-Heritage Lagoon and the Frameworks

The distinctive lever is the **world-heritage lagoon and barrier reef**, defensible through the international and marine frameworks that name it a treasure of all humanity — and the sediment the mining sends into it is a concrete, documented harm. Invoke the world-heritage status and the frameworks against harm to the lagoon.

The Environmental Regulation and the Endemic Life

The **open-cast nickel mining** can be pressed toward restraint through the **territory's and provinces' environmental regulation, codes, and assessment**, and the **extraordinary endemic life** commands the **world's conservation frameworks**. Press the regulation for restraint and better practice, and invoke the conservation frameworks for the endemic forests.

The Kanak Rights and the Courts

The **indigenous Kanak land and environmental rights** are deep and proven, and the **French and local legal system** offers working courts and codes. Pursued together — the world-heritage lagoon, the regulation and conservation frameworks, and the Kanak rights and courts — these levers press the mining toward restraint, keeping strictly to the environmental.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Tailor the case to each audience. **For the environmental bodies:** here is a mine whose regulation and assessment demand restraint, not reliance on the company. **For the world-heritage and conservation frameworks:** here is sediment harming a treasure of all humanity, and endemic life at stake. **For the Kanak authorities:** here is land and environment your rights protect. **For the courts:** here is the code, the assessment, or the right breached. **For the wider public:** here is a way to keep the nickel livelihood while defending the lagoon. **The golden rule:** ground the case in the world-heritage lagoon, the regulation, and the Kanak rights, aim at restraint not ruin, and keep strictly to the environmental and neutral on the politics.

STEP 5: MEDIA STRATEGY

In a legally-equipped territory with a free press, media matters — handled neutrally on the politics. Frame the story around **the lagoon and the endemic life**: a treasure of all humanity harmed by the sediment of the mines, and a way to keep the livelihood while defending the environment — never as a stance on the decolonisation. Carry it through the local and French press, the conservation networks, and the world-heritage bodies. A few cautions: keep it accurate and grounded in the regulation and the science; aim at restraint, not the ruin of the nickel economy; stay neutral on the politics; and let the world-heritage lagoon and the Kanak rights carry the weight.

EMAILS & LETTERS

Keep every message factual, grounded in the regulation and the world-heritage frameworks, and neutral on the politics.

8A — To the territory or province environmental body: identify the mine and the restraint its regulation and assessment demand.

8B — To the world-heritage or marine framework: document the sediment harming the world-heritage lagoon.

8C — To a conservation framework: connect the harm to the endemic biodiversity and its protection.

8D — To the Kanak customary authorities: engage the land and environmental rights the harm touches.

8E — To the courts (through counsel): establish the code, assessment, or rights breach.

8F — On better practice: propose the mining restraint and standards that protect the lagoon while keeping the livelihood.

8G — To a conservation or scientific group: request the endemic-life and sediment science.

8H — To the press and public: frame the case around the world-heritage lagoon, neutrally on the politics.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

The first 48 hours: find the mine's permit and assessment; document the sediment to the lagoon and the endemic life at stake; check whether it touches Kanak land; write the one-page case. **The fastest-moving levers:** the world-heritage lagoon, the environmental regulation, and the Kanak rights. **Emergency action:** if a mine is harming the world-heritage lagoon, the international frameworks, the regulation, and — through counsel — the courts are the sharpest handles, and the Kanak rights can be invoked at once. Throughout, aim at restraint and keep strictly to the environmental.

WHEN THE SYSTEM IS TILTED

Even in a legally-equipped territory the field can tilt: nickel is ninety percent of exports, and the regulation has too often relied on the companies. Recognise it, and lean on the levers the tilt cannot escape — the world-heritage lagoon and its frameworks, the environmental regulation and assessment, the deep and proven Kanak rights, and the working courts. In New Caledonia these genuinely work. And accept, honestly, that the mining is entrenched and reform means reckoning with livelihoods, that the industry is in crisis, and that the decolonisation is tense — so the work aims at restraint, keeps strictly to the environmental, and stays neutral on the politics.

WHEN IT'S ACTUAL CORRUPTION — AND WHO BENEFITS

New Caledonia is a legally-equipped French territory with working courts, so the more usual challenge is regulation left to the companies and a powerful nickel interest, rather than outright capture. Where a mine proceeds against the codes or the assessment, respond through the strong channels the territory genuinely provides: the environmental bodies, the courts, the Kanak rights, the world-heritage and conservation frameworks, and the free press. **On safety:** New Caledonia is a rule-of-law territory; the risks here are

political and economic, not physical, though the decolonisation is tense and must be handled with care and neutrality. So keep the work strictly environmental, grounded in the regulation and the world-heritage frameworks, aimed at restraint, and neutral on the politics.

INTEGRATION & TIMELINE

The steps run in parallel. The documented harm feeds the regulatory challenge, the world-heritage claim, and the Kanak-rights case at once; the Kanak authorities, conservation groups, and residents organise alongside; the media frames the lagoon neutrally throughout. A rough timeline: **weeks one to four**, document the harm and engage the environmental body; **months two to six**, press the regulation, the world-heritage and conservation frameworks, the Kanak rights, and — through counsel — the courts; **beyond**, secure the win — the mining restrained, the lagoon defended — and hold it. The core discipline: grounded in the world-heritage lagoon, the regulation, and the Kanak rights, aimed at restraint, and neutral on the politics.

FINAL ASSESSMENT

Opposition in New Caledonia is genuinely achievable, because it pairs a powerful extractive economy with real legal, regulatory, indigenous, and world-heritage tools, in a territory with working courts and codes. This guide has been honest that nickel is ninety percent of exports, so the mining is entrenched and reform means reckoning with livelihoods; that the industry is in crisis, both a danger and an opening; that the decolonisation is tense and demands care and neutrality; and that the regulation has too often relied on the companies. But those honest truths do not weaken the effort — they define its shape. A community that grounds its case in the world-heritage lagoon and barrier reef, presses the mining toward restraint through the territory's and provinces' environmental regulation and assessment, invokes the world's conservation frameworks for the endemic life, wields the deep and proven Kanak land and environmental rights, and enforces it all through the working courts — while aiming at restraint not ruin, and keeping strictly to the environmental — can genuinely press the mining toward restraint and better practice and defend the lagoon and forests. The tools are real, and the distinctive strength is a territory that holds, alongside its nickel, a treasure of all humanity and a people with a proven record of defending it.